

Furthermore, any challenge to the legal sufficiency of the new claims is premature; the "preferable practice" is to permit the amendment and allow the opposing party to test the pleading's merits via a demurrer or motion for judgment on the pleadings. While Defendants argue that the new claims materially expand the scope of the case, California law establishes that a change in legal theory or the fact that an amendment might lead to a more favorable result for the Plaintiff does not constitute legal prejudice. Because there is no trial date and discovery remains open, any added cost of preparation does not constitute the type of prejudice that justifies denying a party the right to assert a meritorious cause of action.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600657	WARD VS CITI GSM PORTFOLIO, LLC	MOTION TO QUASH SERVICE OF SUMMONS ON COMPLAINT FOR OTHER REAL PROPERTY (OVER \$35,000) OF CHANICE WARD BY CITI GSM PORTFOLIO, LLC, FAY SERVICING, LLC

Tentative Ruling: Defendants CITI GSM PORTFOLIO, LLC and FAY SERVICING, LLC ("Defendants") Motion to for an order quashing the purported service of the Summons and Complaint effectuated on May 29, 2026 is granted.

Order to Show Cause is set for 9/24/26 as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to timely file proof of service ALL defendants on complaint pursuant to CRC 3.110(b & f) as to CHANICE WARD

The Court first notes that Plaintiff Chanice Ward ("Plaintiff") has failed to file any opposition to the instant motion [User Query]. Under California law, the failure of a responding party to file points and authorities in opposition to a motion may be considered by the court as an admission that the motion is meritorious.

Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20.

Under C.C.P., § 418.10(a), a defendant may file a motion to quash service of summons on the following grounds: (1) lack of jurisdiction; (2) inconvenient forum; or (3) dismissal pursuant to a delay in prosecution. When a defendant challenges the court's personal jurisdiction on the grounds of improper service of process, the plaintiff has the burden to prove the existence of jurisdiction by proving the facts requisite to an effective service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413). Without valid service of summons, the court never acquires jurisdiction over defendant. (C.C.P. § 418.10(a)(1); see *Kremerman v. White* (2021) 71 Cal.App.5th 358, 371 ["compliance with the statutory procedures for service of process is essential to establish personal jurisdiction."] A defendant is under no duty to respond in any way to a defectively served summons. It makes no difference that defendant had actual knowledge of the action. Such knowledge does not dispense with statutory requirements for service of summons and is not alone sufficient to confer jurisdiction. (*American Express Centurion Bank v.*

Zara (2011) 199 Cal.App.4th 383, 392; *Kappel v. Bartlett* (1988) 200 Cal.App.3d 1457; *Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808.)

When a defendant challenges personal jurisdiction based on improper service, the burden of proof rests entirely on the plaintiff to prove the facts necessary to establish an effective service. *Dill v. Berquist Const. Co., Inc.* (1994) 24 Cal.App4th 1426, 1439-1440. Compliance with statutory procedures is essential, as the court never acquires jurisdiction over a defendant without valid service of summons. C.C.P. § 418.10(a)(1); see *Kremerman v. White* (2021) 71 Cal.App.5th 358, 371.

The evidence presented by Defendants demonstrates that service was defective the Proofs of Service filed on June 9, 2026, indicate that service was attempted at 3333 Camino del Rio South, Suite 225, San Diego, CA 92108, which is the business address of Defendants' legal counsel, Aldridge Pite, LLP. For service on a limited liability company or corporation to be valid under C.C.P. § 416.10, it must be delivered to a designated agent for service of process or a high-ranking officer (such as a president or CEO). Defendant's counsel, Mari-Elizabeth Sanford, provided a declaration stating she is not the registered agent for Defendants and has never been authorized to accept service on their behalf. (Sanford Decl. ¶¶2-4).

This is the second instance in this litigation where Plaintiff has failed to effectuate proper service; a previous Motion to Quash was granted by this Court on May 18, 2026, for similar failures. (See court's 5/18/26 ruling on motion to quash).

4.

CASE #	CASE NAME	HEARING NAME
CVSW2305039	TEMECULA PETROLEUM INC. VS TEMECULA PREMIUM GASOLINE	MOTION FOR SUMMARY JUDGMENT ON CROSS-COMPLAINT OF LOFTALI SHIRMOHAMMADI
CVSW2305039	TEMECULA PETROLEUM INC. VS TEMECULA PREMIUM GASOLINE	MOTION FOR SUMMARY ADJUDICATION ON 3RD AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY (OVER \$25,000) OF TEMECULA PETROLEUM INC.

Tentative Ruling: Plaintiff's Motion for Summary Judgment/Adjudication on Complaint is denied.

Cross-Defendants Susan Refahiat and Station Sales, Inc.'s Motion on Cross-Complaint's Summary Judgment/Adjudication on Cross-Complaint is granted as to the first, second, third, fourth, fifth, eighth, and ninth causes of action.

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (CCP § 437c(c).) The moving party bears the initial